

EXHIBIT O

RT 7 excerpts

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: RT Day 7

1 that right?

2 A. Correct.

3 Q. And he refused transport to the hospital at
4 the scene, correct?

5 A. Correct.

6 Q. I am only asking this because Mr. Rosario
7 brought this up.

8 But a driver has to be able to see an
9 oncoming scooter in order to yield, correct?

10 A. Correct.

11 Q. A driver can't be expected to yield to a
12 person or scooter that you can't see, correct?

13 A. Correct.

14 MS. NAVARATNASINGHAM: Thank you. I have no
15 further questions.

16 THE COURT: Redirect?
17

18 REDIRECT EXAMINATION BY

19 MR. ROSARIO: Q. If a driver is not capable
20 of seeing, they are still obligated to look; is that
21 correct, Officer Fernandez?

22 A. Sorry.

23 Q. Drivers are obligated to look and determine
24 they can safely traverse a sidewalk, correct?

25 A. They are required to make sure it is clear
26 and to yield to any pedestrians, and if it is safe to
27 do so, they can proceed.

28 Q. On the report you have there, there is a

1 session. All jurors are present. All parties are
2 present.

3 Your next witness, Mr. Rosario.

4 MR. ROSARIO: Your Honor, I call myself to
5 the stand under Evidence Code 1220, party admission in
6 California Evidence Code 1271 business records, the
7 Evidence Code of 780, personal knowledge and
8 credibility, that I received the records from the
9 authorization of the Officer of the Court, the Dolan
10 Law Firm, who provided the Department of Emergency
11 Management record.

12 I am going to testify to my dying declaration
13 that I made during the 911 call to the police and
14 emergency services.

15 Party admissions is evidence of -- a
16 statement is not made inadmissible by hearsay rule
17 when offered against a declarant in an action to which
18 he is party.

19 And the Court or jurors may consider the
20 existence or nonexistence of a bias in the case where
21 the testimony of a witness concerning a particular
22 matter is inadmissible unless he has personal
23 knowledge of the matter.

24 THE COURT: Very well.

25 MR. ROSARIO: I can provide that -- as
26 Custodian of the Records, an affidavit of subpoena
27 custodian appearance. I received this -- I was
28 presented to the Court by my former attorney, the

1 Dolan Law Firm.

2 THE COURT: Okay. Well, all right. So how
3 are we going to proceed? Are we going to have someone
4 ask you questions?

5 MR. ROSARIO: I am going to play the
6 recording for the Court and I am going to allow that,
7 first, to stand, about my declarations that I made to
8 the 911 services. And I will be able to certify that
9 that is my voice in the recording.

10 It is going to be a little bit disturbing,
11 okay? But it is important for us to understand that
12 my personal declaration was the message that was sent.

13 THE COURT: Well, sir, I am just simply
14 asking you: How are we going to do this?

15 Typically, we have witnesses who take a
16 witness stand, and we have someone who will ask
17 questions.

18 Are one of your assistants going to be asking
19 the questions so we can have this evidence admitted
20 into evidence?

21 I am not saying that it is going to, but I
22 need to have somebody ask you the questions so that we
23 have the right foundation in order for the material to
24 be considered by the jury.

25 MR. ROSARIO: Okay. I have prepared some
26 questions and have gone over them with Mr. Sobati to
27 ask me.

28 THE COURT: Okay. In order to make this more

1 efficient, we will have Mr. Sobati ask you the
2 questions and you should take the witness stand and be
3 sworn.

4 MS. NAVARATNASINGHAM: Your Honor, before we
5 do that -- I don't believe that I have been -- and I
6 am not sure what recording he is referring to.

7 Before the jury hears it, I also believe a
8 dying declaration -- he is here present.

9 So I am not sure he can illicit that
10 testimony or that call. But I would like more
11 clarity, before a jury hears a recording, what we are
12 talking about here.

13 THE COURT: Okay. So the first thing is: If
14 this is a recording of individuals which you are
15 presenting, do you have a transcript of the
16 recordings?

17 MR. ROSARIO: Yes.

18 THE COURT: Okay. We need to have at least
19 18 copies.

20 Do you have that? That is so that we can
21 pass those out to the jury and I can give them
22 instructions about the transcript.

23 Do you have that?

24 MR. ROSARIO: We don't have 18. We prepared
25 the four the clerk told us to prepare. She told us to
26 have four copies prepared.

27 We can have that made right now.

28 THE COURT: All right. Next, I think as a

1 remarks of opposing Counsel.

2 So I am discouraged by your use of Mr. Sobati
3 here because it is not turning out to be as efficient
4 as I thought.

5 So if you choose to do the narrative fashion,
6 if you choose to go that route, I expect you to give
7 short statements about what happened.

8 You understand what the rules are, the
9 motions in limine rulings have been, and I expect you
10 to follow them.

11 To the extent that you want to have an
12 emotional outburst or that you are upset about one
13 thing or another, that does not help you in this case.

14 MR. ROSARIO: All right.

15 THE COURT: It does not help your presence in
16 front of the jury.

17 The last few minutes in front of the Court
18 and in front of the jury were not helpful. That is
19 why I took an early break here, largely because you
20 were unraveling.

21 We cannot have you attack the other side with
22 personal opinions about the other witnesses in this
23 case whether you agree or disagree or not.

24 You have no place doing that.

25 The only people who have the right to decide
26 whether someone was right or wrong or to assess their
27 credibility and so forth is the jury.

28 You have no right to tell them how to think

1 or to say what you think. It is not relevant.

2 MR. ROSARIO: When somebody calls me and
3 tells me I am dying, I was trying to share that --

4 THE COURT: Sir, that is something that is to
5 be presented to the jury.

6 You have repeated it on numerous occasions
7 that you were dying and that you were terrified and
8 you were not sure what was happening.

9 I could repeat the testimony several times
10 over.

11 MR. ROSARIO: Okay.

12 THE COURT: And I have not; I have not ruled
13 that this is becoming cumulative, but I will.

14 So tomorrow you must understand that when you
15 testify, that you do not present anything other than
16 new material, understood?

17 MR. ROSARIO: Understood.

18 THE COURT: Otherwise, I will strike it. I
19 have been doing that this afternoon largely because
20 you repeat yourself many, many times and the jury gets
21 the point.

22 At some point, they hear it too often and
23 they will not take you seriously.

24 So make sure that you get in and get out with
25 your statements; short, brief, narrative statements
26 about what happened and why you think the other side
27 is liable and why there is causation.

28 You don't have to explain it. You simply

1 You folks, however, must have a device that
2 plays the recording. I don't see anything in front of
3 me right now.

4 You may have it in the anteroom, but that
5 needs to be ready and there should be no delays in
6 playing that once Mr. Rosario seeks to have that
7 played in front of the jury.

8 The transcripts, there should be 18 of them.
9 That is 15 for the jurors that are here; one for
10 Defense Counsel, who apparently has one; one for the
11 Court and one for the Courtroom Deputy.

12 And instruction that is always given is that
13 the evidence in the case is what the recording
14 purports to be -- I have already instructed them as
15 much -- not what the transcript says. All right?

16 The transcript is simply a guide for the
17 jurors to follow along.

18 To the extent that there is some difference
19 in what happened, it is the recording that takes
20 priority and is the evidence for them to consider.
21 All right.

22 So that addresses the 911.

23 Is there something else that you seek to have
24 admitted? I don't want to spend time during the
25 middle of the trial addressing these issues during the
26 time when the jury is present. It is a waste of their
27 time.

28 MR. ROSARIO: Your Honor, the Defense asked